

Enter Team Name and Logo Here

2018-2019 Season

ABA Professional Basketball Player's Contract

THIS AGREEMENT made this _____ day of _____, 2018 is by and between **enter new team name here**, (hereinafter called the "Team"), a member of the American Basketball Association (hereinafter called the "ABA" or "League") and **enter player name here**, whose phone number is _____ as an individual Professional Basketball Player whose address is _____, shown (hereinafter called the "Player"). In consideration of the mutual promises hereinafter contained, the parties hereto promise and agree as follows:

RECITALS: In consideration of the promises listed in this Contract, and for other good and valuable consideration, the receipt of which and the adequacy of which is hereby acknowledged by the parties, the Player and the Team agree as follows:

1. TERM: The Team has requested that the Player as a skilled professional basketball player to report for the season starting on **date of contract signing to Final Game, 2019** and play for the Team and ending at the conclusion of the ABA Tournament series, unless terminated or renewed as specified elsewhere in this Contract. Notwithstanding the foregoing, the Team may terminate this Contract prior to the conclusion of the term stated above at anytime as the team sees fit, as more fully set forth herein in paragraph 7. Upon termination of this Contract, all obligations of the Team shall immediately cease, except for the obligation of the Team to pay compensation through the date of termination within 30 days of termination provided all obligations have met by the player. The execution of this Contract will supersede any and all prior contracts, agreements, understandings, including renewals, if any, entered into between the Player and the Team.

2. SCOPE OF SERVICES: The Team requested player to play as a skilled professional basketball player and the Player accepts such agreement. During the term of this Contract, the Player will provide to the Team all of the services required under this Contract. The Player may be traded from the roster of one Team to another. The Player's "Agreement" with the Team means the Player will report promptly on **date of first practice or meeting or contract signing** to the Team and participate fully in all Team season training practices, all Team meetings and practice sessions and all season games, regular season events, and/or tournament games scheduled by the ABA for the Player's Team. If invited, Player shall practice for and play in any ABA All-Star Game and will fully participate in all of the events associated with it, and will participate in all reasonable promotional events of the ABA and the Team, throughout the entire regular season and tournaments.

At any time during the term of this Contract, the team may affect a trade by assigning this Contract and the services of the Player hereunder to any other Team (the “New Team”) in the ABA or in another league. The Team may negotiate and charge a fee for the transfer of this Contract and/or the services of the Player to be paid by the New Team. The Player must report to the New Team within forty-eight (48) hours of being informed of the trade. As used in this section 2, the term “report” means appear in person ready and able to perform his duties or to otherwise make arrangements—confirmed in writing—that are satisfactory to the New Team.

3. COMPENSATION.

(a) The Team agrees to compensate the Player for rendering the services and performing the obligations described herein the compensation described in Exhibit 1(the “Compensation”) The Team shall pay the Player the Compensation, in the form of **20 game tickets per game** (b) The Team will not pay and the Player will not accept any bonus or anything of value on account of the Team’s winning any particular ABA games or series of games or attaining a certain position in the standings of the League as of a certain date, provided, however, that the Team will continue the monthly payments described in paragraph

3(b) on a pro rata basis beyond the Term of paragraph 1 for the period, if any, of playoff games and/or post-season games.

4. PHYSICAL CONDITION.

(a) The Player agrees to report at the time and place fixed by the Team in good physical condition and to keep himself throughout each ABA Season in good physical condition.

(b) If the Player, in the judgment of the Team’s physician, is not in good physical condition at the date of his first scheduled game for the Team, or if, at the beginning of or during the Term, he fails to remain in good physical condition (unless such condition results directly from an injury sustained by the Player as a direct result of participating in any basketball practice or game played for the Team during the Term), so as to render the Player, in the judgment of the Team’s physician, unfit to play skilled basketball, the Team shall have the right to suspend such Player until such time as, in the judgment of the Team’s physician, the Player is in sufficiently good physical condition to play skilled basketball. In the event of such suspension, the Compensation payable to the Player for the duration of the Contract Term shall be reduced in the same proportion as the length of the period during which, in the judgment of the Team’s physician, the Player is unfit to play skilled basketball, bears to the length of such Contract Term.

(c) Subject to the provisions set forth in Exhibit 2, if in the judgment of the Team’s physician, the Player’s injuries resulted directly from playing for the Team and render him unfit to play skilled basketball, then, so long as such unfitness continues, but in no event after the Player has received his full Compensation for the Contract Term in which the injury was sustained, the Team shall pay to the Player the Compensation prescribed in Exhibit 1 to this Contract for such Contract Term. The Team’s obligations hereunder shall be reduced by (i) any workers’ compensation benefits, if any, which, to the extent permitted by law, the Player hereby assigns to the Team, and (ii) any insurance provided for by the Team whether paid or payable to the Player.

- (d) The Player agrees to provide to the Team's coach, trainer, or physician prompt notice of any injury, illness, or medical condition suffered by him that is likely to affect adversely the Player's ability to render the services required under this Contract, including the time, place, cause, and nature of such injury, illness, or condition.
- (e) Should the Player suffer an injury, illness, or medical condition, he will submit himself to a medical examination, appropriate medical treatment by a physician designated by the Team, and such rehabilitation activities as such physician may specify. Such examination when made at the request of the Team shall be at its expense, unless made necessary by some act or conduct of the Player contrary to the terms of this Contract.
- (f) The Player agrees (i) to submit to a physical examination at the commencement and conclusion of each Contract Term hereunder, and at such other times as reasonably determined by the Team to be medically necessary, and (ii) at the commencement of this Contract, and upon the request of the Team, to provide a complete prior medical history.
- (g) The Player agrees to supply complete and truthful information in connection with any medical examinations or requests for medical information authorized by this Contract.
- (h) A Player who consults a physician other than a physician designated by the Team shall give notice of such consultation to the Team and shall authorize and direct such other physician to provide the Team with all information it may request concerning any condition that in the judgment of the Team's physician may affect the Player's ability to play skilled basketball.
- (i) If and to the extent necessary to enable or facilitate the disclosure of medical information as provided for by this Contract, the Player shall execute such individual authorization(s) as may be requested by the Team or as may be required by health care providers who examine or treat the Player.

The Player hereby acknowledges that he has read and clearly understands the provisions and absolute release.

(PLAYER MUST INITIAL HERE _____)

5. INJURY: If Player is injured in the performance of his services under this Contract, he must immediately report such injury to the Team's trainer and physician no later than twenty-four (24) hours after the Player's first awareness of such injury. The Player will receive such medical and hospital care during the term of this contract, as the Team's physicians deem necessary and appropriate in their professional judgment. If the Player is unable to perform the services required of him as a member of his Team due to such injury, then the Player will receive such care as provided by the Team pursuant to applicable state laws. **All Players must provide and carry their own individual health insurance and must show proof unless otherwise authorized.** Players must follow the instructions of the Team physician and trainer and keep all appointments for treatment and/or rehabilitation. This includes traveling to meet with the physician and trainer, if requested by the Team. If the Player fails to keep appointments or follow the physician's and/or trainer's instructions, it will be grounds for the termination "for cause" of this Contract by the Team. Copies of players insurance will be kept in players personnel file.

6. TERMINATION OF CONTRACT: The rights of termination set forth in this Contract will be in addition to any other rights allowed either party by law. The Team may terminate this Contract, with cause, with or without notice, at any time and for reasons set forth in this paragraph (7) and paragraphs (4) (5) (supra) and (9) (infra). For purposes of this Contract, “cause” shall exist if the Player at any time: fails, refuses or neglects to conform his personal conduct to the standards of good citizenship, good moral character and good sportsmanship; fails, refuses or neglects to keep himself in good physical condition; fails, refuses or neglects to obey the Team’s or ABA’s rules; acts in a manner that reflects adversely upon the ABA’s or Team’s reputation or impairs their business operations or financial condition; fails, in the sole opinion of the Team, to exhibit sufficient skills or ability to continue as a member of the Team; fails, refuses or neglects to render his services in any manner materially breaching this Contract.

7. ABA RULES AND REGULATIONS: The Team and the ABA have or will have established reasonable written rules for the conduct of the Player and after they are provided to the Player, these rules are deemed a part of this contract. The Team and the ABA may impose reasonable fines or suspensions on the Player for violating these rules by giving the Player written notice of the amount of any fine or the length of any

suspension and the reasons for the fine or suspension and by deducting the fine from any money due or to become due to the Player. During any suspension, the Player is not entitled to any compensation under the Contract.

8. INTEGRITY OF THE GAME: Player recognizes that any dishonest, immoral, illegal or other unbecoming behavior by Player will cause a serious, imminent and irreparable harm to the ABA, the Team, and professional basketball. Player acknowledges the detriment to the ABA, the Team and professional basketball that would result from impairment of public confidence in the honest and orderly conduct of ABA games or the integrity and good character of ABA Players. Player therefore agrees not to accept a bribe or throw or fix any ABA game or attempt to do the same. Player also agrees not to bet, legally or illegally, anything of value on the result or margin of victory of any ABA game and Player agrees to not, legally or illegally, bet anything of value on the result or margin of victory of any professional or college basketball game. Player also agrees to promptly report to the ABA League office, a bribe offer or an attempt to throw or fix an ABA game. Player also agrees not to knowingly associate with gamblers or gambling activity; not to use illegal drugs; not to provide other Players with stimulants or other drugs for any purpose; or to be found guilty of any other form of conduct reasonably judged by the ABA League to be detrimental to the ABA, the Team or professional basketball. If the ABA League, in its sole discretion, finds any Player responsible for any of the above violations, the League may suspend, dismiss and/or permanently disqualify the Player from any further association with the ABA. The ABA League findings and decisions with regard to this matter are final and binding and not subject to appeal.

9. ASSIGNMENT: In addition to the roster assignments and reassignments described in section 2, or the Team shall have the right to sell, exchange, assign or transfer this Contract to any other professional basketball club or leagues, including without limitation, an ABA Team, and Player shall accept such sale, exchange, assignment or transfer, and comply with his obligations hereunder as if Player had entered into this Contract with the assignee club or league instead of with the team. The Team shall also have the right to furnish to the officials of any club or league to which Team desires to sell, exchange assign or transfer this Contract, all relevant contractual information relating to the Player, and Team may authorize the ABA's drug testing organization and/or the Team's physician to furnish to the physicians and officials of such other club or league all relevant medical information relating to the Player, including the results of any drug tests conducted on the ABA's behalf. The Player shall have no right to assign this Contract or any of his obligations hereunder.

10. UNIQUE SKILL; BREACH OF CONTRACT: As a basic premise for entering into this Contract, the Player hereby agrees that the Player possesses extraordinary and unique skills and abilities as a professional basketball player. Accordingly, the Player acknowledges that the Player's services cannot be replaced, or the loss thereof adequately compensated for in monetary damages, and any breach of this Contract shall cause irreparable injury to the Team. In the event that the Player plays, attempts to play or threatens to play in or for any other basketball league or club, other than the ABA or the Team, without the prior written consent of the Team, then the Team shall have the immediate right, in addition to any other legal or equitable rights available, to obtain a decree in a court of competent jurisdiction enjoining the Player from any further breach of this Contract and/or enjoining the Player from playing basketball anywhere in the world for any other league or club during the term of this Contract. In any proceeding brought to obtain such relief, the Player shall and hereby does waive his right, if any, to trial by jury, and his right, if any, to seek any counter-claim or set-off for any cause whatsoever against the ABA or the Team. Any litigation arising out of this section shall be filed in the state and city in which the ABA League office is located or the state and city in which the Team plays its home games, at the discretion of the Team. The Player agrees that he will not, during the Term of this Contract, directly or indirectly, entice, induce, or persuade, or attempt to entice, induce, or persuade, any player or coach who is under contract to any ABA team to enter into negotiations for or relating to his services as a basketball player or coach, nor shall he negotiate for or contract for such services, except with the prior written consent of such team. Breach of this subparagraph, in addition to the remedies available to the Team, shall be punishable by fine and/or suspension to be imposed by the ABA or the Team. When the Player is fined and/or suspended by the Team or the ABA, he shall be given notice in writing, stating the amount of the fine or the duration of the suspension and the reasons therefor.

11. DISPUTE RESOLUTION; ATTORNEYS' FEES: Any dispute between the Player and the Team relating to this Contract, or concerning its performance or interpretation, other than those covered by Section 11 and 14 of this Contract, shall (by written notice to the other party) first be submitted to the League office, or its designee, for mediation. No other action may be taken during the fifteen (15) days following the submission for mediation. In the event that the dispute is not resolved by mediation, the dispute shall be settled by final and binding arbitration in accordance with the then prevailing rules for commercial arbitration of the American Arbitration Association. Any judgment or award rendered by the arbitrator may be entered in any court of competent jurisdiction. The filing of the demand for arbitration and the arbitration hearing shall take place in the city where the League office is located. The losing party in the arbitration shall pay all fees and costs of the arbitration and the prevailing party shall be entitled to reasonable attorneys' fees and costs.

12. OTHER ATHLETIC ACTIVITIES.

The Player and the Team acknowledge and agree that the Player's participation in certain other activities may impair or destroy his ability and skill as a basketball player, and the Player's participation in any game or exhibition of basketball other than at the request of the Team may result in injury to him. Accordingly, the Player agrees that he will not, without the written consent of the Team, engage in any activity that a reasonable person would recognize as involving or exposing the participant to a substantial risk of bodily injury including, but not limited to: (i) sky-diving, hang gliding, snow skiing, rock or mountain climbing (as distinguished from hiking), rappelling, and bungee jumping; (ii) any fighting, boxing, or wrestling; (iii) driving or riding on a motorcycle or moped; (iv) riding in or on any motorized vehicle in any kind of race or racing contest; (v) operating an aircraft of any kind; (vi) engaging in any other activity excluded or prohibited by or under any insurance policy which the Team procures against the injury, illness or disability to or of the Player, or death of the Player, for which the Player has received written notice from the Team prior to the execution of this Contract; or (vii) participating in any game or exhibition of basketball, football, baseball, hockey, lacrosse, or other team sport or competition. If the Player violates this Paragraph 12, he shall be subject to discipline imposed by the Team and/or the ABA. Nothing contained herein shall be intended to require the Player to obtain the written consent of the Team in order to enable the Player to participate in, as an amateur, the sports of golf, tennis, handball, swimming, hiking, softball, volleyball, and other similar sports that a reasonable person would not recognize as involving or exposing the participant to a substantial risk of bodily injury.

13. PROMOTIONAL ACTIVITIES.

(a) The Player agrees to allow the Team, the ABA, or a League-related entity to take pictures of the Player, alone or together with others, for still photographs, motion pictures, or television, at such reasonable times as the Team, the ABA or the League-related entity may designate. No matter by whom taken, such pictures may be used in any manner desired by either the Team, the ABA, or the League-related entity for publicity or promotional purposes. The Team owns all rights to the intellectual and media properties of said Player. The rights in any such pictures taken by the Team, the ABA, or the League-related entity shall belong to the Team, the ABA, or the League-related entity, as their interests may appear.

(b) The Player agrees that, during the Term of this Contract, he will not make public appearances, participate in radio or television programs, permit his picture to be taken, write or sponsor newspaper or magazine articles, or sponsor commercial products without the written consent of the Team, which shall not be withheld except in the reasonable interests of the Team or the ABA.

(c) Upon request, the Player shall consent to and make himself available for interviews by representatives of the media conducted at reasonable times.

(d) In addition to the foregoing, the Player agrees to participate, upon request, in all other promotional activities of the Team, the ABA, and any League-related entity. The Player shall not receive any compensation for such promotional appearances made on behalf of a sponsor of the Team.

14. TEAM LICENSE.

(a) The Player hereby grants to the Team the exclusive rights to use the Player's player attributes, including, but not limited to, the Player's physical appearance, voice and playing characteristics, (the "Player Attributes") for licensing purposes (the "Team License").

(b) Notwithstanding anything to the contrary contained in the Contract, the Team may use, in connection with League and Team Promotions, the Player's (i) name or nickname and/or (ii) the Player's Player Attributes as such Player Attributes may be captured in game action footage, photographs, and intellectual and media properties. The Team shall be entitled to use the Player's Player Attributes individually pursuant to the preceding sentence and shall not be required to use the Player's Player Attributes in a group or as one of multiple players. As used herein, League and Team Promotion shall mean any advertising, marketing, or collateral materials or marketing programs conducted by the ABA, the Team or any other ABA team that is intended to promote (A) any game in which an ABA team participates or game telecast, cablecast or broadcast (including Pre-Season, Exhibition, Regular Season, and Playoff games), (B) the ABA, its teams, or its players, or (C) the sport of basketball.

15. RELEASE: The Player hereby releases and waives every claim he may have, now or in the future, against the Team and the ABA, arising out of or in connection with (i) any injury suffered by Player while performing his services hereunder; and (ii) the imposition by the league or Team of any rule, regulation or policy, including without limitation, the drug testing program administered by the ABA.

16. RIGHTS OF PUBLICITY AND PRIVACY: The Player grants to the Team, and the ABA, separately and together, the full authority to use his name, signature, likeness and/or picture for all publicity and promotional purposes in newspapers, magazines, motion pictures, trading cards, game programs, roster manuals, all broadcasts and telecasts, digital media and all other publicity and advertising media. The Player agrees to cooperate with the news media and to participate, upon request and without further compensation that is specified herein, in any reasonable promotional activities of the Player's Club and/or the ABA including but not necessarily, limited to the following: personal appearances, media, television and print interviews, autograph sessions, videos and other media. Without limiting the generality of the foregoing, and in particular, the Player shall make a minimum of eight (8) promotional appearances and participate in a

reasonable number (as determined by the Team in good faith) of pre- or post- game autograph sessions, all without claim for additional compensation. The Player also agrees not to engage in any promotional, advertising, sponsorship or related activity for any entity or purpose during the term of this Contract without the prior, written permission of the Team, and the ABA League, which permission will not be unreasonably withheld if the Team and the ABA League Counsel finds that such activity does not conflict with any and all ABA or Team protected trademarks, copyrights and/or logos associated with the ABA or any ABA member Team or any other protected purpose of the Team, the ABA or with any sponsors of the Team and/or the ABA. The terms “publicity,” “endorsements,” and/or “promotions,” as used herein, will include, but will not necessarily be limited to, the following: athletic gear and/or apparel supplied or provided by the Team to the Player. In addition, the Team and the ABA may make pictures and sound recordings of the Player alone or with others, for photographs, computer images, motion pictures, television and other media known or unknown. The Team and the ABA may use the pictures and recordings, no matter by whom taken, in any manner for publicity, advertising, promotional, or trade purposes. The rights in any pictures and recordings belong to the Team and the ABA but not the Player. The Player may not use any logo, trademark and/or copyright of the ABA or any ABA club for any purpose without the prior written consent of the ABA League.

The Player acknowledges and agrees that the ABA and Team shall have a paid-up, royalty-free right to exploit in perpetuity the Player's name, signature, likeness and/or picture in their copyrighted works and in works which record or depict the Player. The ABA and the Team shall have and retain all rights afforded the owner of such rights.

The ABA and the Team shall have and retain all rights afforded the owner of such copyrighted works (including a right to make derivative works incorporating in whole or in part later or preexisting works) for any purpose whatsoever in any and all media or means of commerce including, but not limited to, network television, cable television, pay-per-view television, movies, video cassettes, video discs, floppy discs, CD-Roms, DVDs, the internet, or any other means of commercial exploitation, whether in existence or hereafter devised, and that player has no rights whatsoever in and to the ABA's and the Team's copyrighted works or exploitation of its copyrighted works including, but not limited to, rights to any compensation for such exploitation.

17. WITHHOLDING.

(a) In the event the Player is fined and/or suspended by the Team or the ABA, the Team shall withhold the amount of the fine from any Compensation due or to become due to the Player with respect to the Contract Term in which the conduct resulting in the fine and/or the suspension occurred (or a subsequent Contract Term if the Player has received all Compensation due to him for the then current Contract Term). If, at the time the Player is fined and/or suspended, the Compensation remaining to be paid to the Player under this Contract is not sufficient to cover such fine and/or suspension, then the Player agrees promptly to pay the amount directly to the Team. In no case shall the Player permit any such fine and/or suspension to be paid on his behalf by anyone other than himself.

(b) Any Compensation withheld from or paid by the Player pursuant to this paragraph 6 shall be retained by the Team or the League, as the case may be. The Player may contest the fine and/or suspension by appealing in writing to the Team within 48 hours of receipt of written notice from the Team of the fine and/or suspension. The Team's judgment on the Player's appeal shall be final and shall not be subject to appeal, arbitration or litigation.

18. UNIFORM AND EQUIPMENT: The Player must wear the official uniform of the Team including, but not limited to jerseys, pants, socks, wristbands, athletic shoes, at all games, practices and other occasions when he wears a basketball uniform or plays basketball for the ABA. The Player may not remove, cover, obscure or otherwise alter any logo, name, color or mark that appears on the foregoing apparel and equipment supplied by the ABA or Team. In addition, the Player may not wear any additional identifying logo, name, colors, marks, or design of any company, product or service at any ABA basketball game, practice or other occasion when he represents the Team or the ABA including, but not limited to, logos, names, colors, marks or designs on athletic shoes, headbands, arm and wrist bands, and socks, without first obtaining the written consent of the ABA League or Team, which consent may be withheld in the sole and absolute discretion of the ABA and/or Team. Upon the termination of this Contract, or at the end of the playing season, the Player must return to the Team all of the uniforms and equipment in his possession or issued to him. As permitted by state law, the Team may deduct from any payment due the Player, the value of any uniform or equipment not returned by the Player.

19. PLAYER'S WARRANTIES: The Player warrants and represents that he is not obligated to play basketball for any other basketball team or league during the term of this Contract. The Player will indemnify and hold harmless the Team and the ABA for any claims, actions, demands losses, costs, expenses, attorneys fees, liability and damages with respect to any contract the Player had previously executed to play basketball during the term of this Contract; will give his best services and loyalty to the Team and the ABA and play basketball only for the Team; will be neatly and fully attired in public and will always conduct himself on and off the court according to the highest standards of honesty, morality, fair play and sportsmanship; will not do anything detrimental to the best interests of the Team or the ABA, and will not sponsor, participate in, operate or own any basketball training, teaching, scouting or tryout camp for college or professional players without the written permission of the ABA; will pay all of his obligations incurred in each city in which he participates with the ABA. If the Player fails to pay any obligation which is incurred while the Player is under contract to the Team, the Owner may pay the obligation and, to the extent permitted by state law, deduct the amount from any amount due, or to become due to the Player.

20. ASSUMPTION OF RISK: The Player understands and agrees that there are risks of injury, severe injury and partial and/or permanent disability associated with playing for the team in the ABA. These risks include the risks ordinarily associated with the playing of basketball games, practicing and traveling to and from games. Therefore, the Player agrees to assume all risks that result from playing the game of basketball and agrees to indemnify the team and the ABA from any causes or claim which might arise from injury or disability within the meaning of this paragraph.

21. ENTIRE AGREEMENT: This Contract and the documents explicitly incorporated by reference into this Contract (i.e. the ABA Drug Policy and ABA and Team rules and regulations) constitute the entire agreement between the Team and the Player and cannot be modified or supplemented orally. No change, termination or attempted waiver of any portion of this Contract is binding unless in writing and signed by the Player, the Owner, and the Team.

22. WAIVER: Failure to insist upon strict compliance with any of the terms, covenants or conditions hereof shall not be deemed a waiver of such term, covenant or condition, nor shall any waiver or relinquishment of, or failure to insist upon strict compliance with, any right or power hereunder at any one or more times be deemed a waiver or relinquishment of such right or power at any other time or times.

23. GOVERNING LAW: This Contract shall be governed in all respects, whether as to validity, construction, capacity, performance, or otherwise, by the laws of the State of Indiana.

24. SEVERABILITY: In the event that an arbitrator or court of competent jurisdiction determines that any portion of this Contract is in violation of any statute or public policy, then only the portions of this Contract which violate such statute or public policy shall be stricken. All portions of this Contract which do not violate any statute or public policy shall continue in full force and effect. Further, any arbitrator or court order striking any portion of this Contract shall modify the stricken terms to give as much effect as possible to the intentions of the parties under this Contract.

25. EXECUTION OF CONTRACT: This Contract is valid and binding upon the Player, and the Team “**enter team name here**” immediately upon execution. A copy of this Contract, including any attachment to it, will be sent by the Team to the ABA League within ten (10) days after execution. The ABA League shall have the right to disapprove this Contract in its sole and absolute discretion if rules and regulation of the ABA are not properly referenced or if this contract violates provisions of the ABA compensation cap provision.

26. AMATEUR STATUS: By signing this Contract, the Player acknowledges that he may forfeit any amateur or collegiate standing or eligibility he may have.

27. LEGAL ADVICE; NEUTRAL INTERPRETATION; HEADINGS: Each party has received or chosen not to seek independent legal advice from its attorneys with respect to the advisability of executing this Contract and the meaning of the provisions hereof. The provisions of this Contract shall be construed as to their fair meaning, and not for or against any party based upon any attribution to such party as the source of the language in question. Headings used in this Contract are for convenience of reference only and shall not be used in construing this Contract.

28. SURVIVAL: All provisions of All Sections shall survive the termination of this Contract and Signature and/or Facsimile will be deemed as Original Signature and Contract.

(Additional terms may be added below or on additional sheets, if needed.)

29. Housing and Employment: It is the responsibility of the "player" to secure adequate housing and employment for themselves outside of playing for the team. It is not the responsibility of **enter team name here** to supply housing or full time employment for its players. If the **enter team name here** help a "player" with the payment of their housing, it will be directly reflected in their game pay total. A corporate lease will be filed with the housing company and any player receiving benefit of a housing allowance will pay said housing payment **on or before the 1st of each month.** After the 5th of the month, a late fee of \$50 will be charged.

PLAYER FINE LIST:

- Technical Fouls - \$25.00 per technical
- Game Expulsion - \$100.00 (if you are kicked out of a game for any reason)
- For Conduct or Attitude that is perceived as Negative - \$100.00
- Being Late (for Team, Community, & Franchise Activities) - \$50.00 (for each hour you're late) *COMMUNICATION of a Problem is Important!!!
- Being Late for Team Travel without Prior Permission or Communication - \$100.00
- Missing A Team Coach Bus, Van, Train, or Flight - \$250.00 (unless you received prior permission to do so or unless you can prove uncontrollable circumstances caused this to happen)
- Missing a Game (without permission or prior knowledge) - \$1000.00
- Showing up Late for a Game (without prior permission or knowledge) - \$500.00
- Loss of Equipment issued by the Pro Basketball Franchise - \$50.00 per article lost (plus the cost of the lost Equipment).
- Failure to Exit Properly at the End of the Season (e.g. Turning in Equipment, & going through an Exit Interview, etc...) - \$500.00
- For Conduct in the Community that is perceived as a Negative Perception of Our Professional Franchise - \$250.00

PLAYER MUST INITIAL HERE _____

PLAYER INFORMATION SHEET

NAME: _____

HT. _____ WT. _____

HOME ADDRESS: _____

Home Phone: _____

Cell: _____ EMAIL: _____

CONTACT PERSON (in case of emergency): _____

Home Phone: _____

Cell: _____

Work Phone: _____

EMAIL: _____

***Should any information change at any time, the "Team"
must be notified immediately.**

CODE OF CONDUCT

As a Player for the ENTER TEAM NAME HERE Professional Basketball Franchise, I agree to the Rules & Regulations of this Franchise, and of the American Basketball Association (ABA). I agree to abide by these Rules & Regulations, and I fully understand that I will be held Responsible and Accountable for my actions both On and Off the Basketball Playing Court at all times. I agree to do all required of me by the Coaching Staff and Franchise in accordance with the terms of my Player Contract with the ENTER TEAM NAME HERE Professional Basketball Franchise & of the American Basketball Association dba ABA.

Player: _____ Date: _____

Owner Date: _____

MEMORANDUM TERMS OF AGREEMENT PLAYER SIGNATURE

I (_____) have read thoroughly through this entire Memorandum outlining the Rules & Regulations of the ENTER TEAM NAME HERE - ABA Professional Basketball Franchise.

I agree to following these Rules & Regulations, I also understand these Rules & Regulations, and I understand that at anytime that I do not comply to the Rules & Regulations of this ABA Professional Basketball Franchise that my Player Contract can be immediately terminated!

I am in full agreement to all within this document and I agree to follow all that has been outlined within this Memorandum!

PLAYER: _____ Date: _____

PLAYER PRINTED NAME: _____

Owner Date: _____

WITNESS: _____ Date: _____

WITNESS PRINTED NAME: _____